

Shri Pal Singh v. State of U.P. — writ disposed with liberty under Clause 6.14

High Court of Judicature at Allahabad · Division Bench · 20 July 2017 · Writ-C No. 31289 of 2017 · **Writ disposed; liberty to approach Executive Engineer under Clause 6.14.**

HEADNOTE

The Allahabad High Court disposed of the consumer writ on the licensee's plea that Clause 6.14 of the U.P. Electricity Supply Code, 2005 afforded an adequate remedy before the Executive Engineer. Liberty was granted to approach that authority with a certified copy of the order; the Executive Engineer was directed to decide the representation strictly in accordance with law within four weeks of filing. The underlying grievance was not examined on merits.

FACTUAL SUMMARY

Shri Pal Singh filed Writ-C No. 31289 of 2017 in the Allahabad High Court against the State of Uttar Pradesh and another. After hearing the petitioner, the Standing Counsel, and counsel for respondent no.2, the licensee's counsel submitted that the petitioner had an adequate remedy before the concerned Executive Engineer under Clause 6.14 of the Electricity Supply Code, 2005. The order does not record the underlying supply or billing dispute.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

Clause 6.14 remedy before Executive Engineer

HOLDING

Clause 6.14 of the Electricity Supply Code, 2005 is an adequate remedy before the Executive Engineer. A writ petition may be disposed of with liberty to the consumer to approach that authority, who shall pass appropriate orders on the representation strictly in accordance with law within four weeks of filing. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PETITIONER'S GRIEVANCES

The Court did not examine the underlying electricity dispute and left it to the Executive Engineer under Clause 6.14. ¶ 1